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Case Number: 26STCV09505 Hearing Date: September 14, 2026 Dept: 406

FARHAD ARDESHIRPOUR-ZARTOSHTI, M.D., et

al.,

Plaintiffs,

v.

MELISSA PENUELA, et

al.,

Defendants.

Case No.: 26STCV09505

Hearing Date: September 14, 2026

[TENTATIVE]

order RE:

defendants' special motions to strike

(CRS# 5268, 1363)

BACKGROUND

On March 24, 2026, Plaintiffs Farhad

Ardeshirpour-Zartoshti, M.D. (Dr. Ardesht) and Farhad Ardesht, M.D., Inc. filed

this action against Defendants Melissa Penuela (Melissa) and Roy Penuela (Roy).

The complaint asserts (1) breach of written contract, (2) intentional

infliction of emotional distress, (3) defamation, and (4) false light.

The dispute stems from a cosmetic surgery that Plaintiffs performed on Melissa in March 2023. The complaint makes the following allegations. The procedure was an elective surgery fully negotiated and agreed upon while Melissa was represented by Roy, her husband and attorney. Among other things, the contract provided that Plaintiffs would perform the surgery at a discount in exchange for Defendants posting a positive review within 30 days. Defendants expressly acknowledged the risks of the procedure, including scarring. The procedure was performed within the standard of care, and the outcome was reasonable and satisfied Defendants' expectations.

However, Defendants failed to post a positive review within 30 days or at any time. Instead, Defendants raised concerns about scarring, and Plaintiffs performed some revisional procedures in October 2023 and February 2024, free of charge. When Defendants returned to Plaintiffs in September 2024, demanding additional surgical services for free, Plaintiffs declined. Then, from March to July 2025, Melissa posted multiple online reviews with the following statement: "Dr. Farhad Ardesht ('SCAR-DESH') left me with ugly visible scarring from a facelift he did when I was only 39 years old. I am not happy with my results." (Compl., Ex. E-I.)

On July 23, 2026, Defendants filed the instant two special motions to strike. Plaintiffs filed an omnibus opposition on August 31, 2026. Defendants filed their respective replies on September 4, 2026.

LEGAL STANDARD

A special motion to strike under Code of Civil Procedure section 425.16 allows a defendant to seek early dismissal of a lawsuit that qualifies as a strategic lawsuit against public participation. A SLAPP is "a cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection." (Code Civ. Proc., § 425.16(b)(1).)

Such acts include (1) any written or oral statement or writing made before a judicial proceeding, (2) any written or oral statement or writing made in connection with an issue under consideration or

review by a judicial body, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. (Code Civ. Proc., § 425.16(e).)

Evaluation of an anti-SLAPP motion

requires a two-prong process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. Second, if the court finds such a showing has been made, the court must then consider whether the plaintiff has demonstrated a probability of prevailing on the claim. (Nygard, Inc. v. Uusi-Kerttula (2008) 159 Cal.App.4th 1027, 1035.) If both prongs are met—(1) the complaint targets protected activity, and (2) the plaintiff has no reasonable probability of success—then the lawsuit is subject to being stricken under the statute. (Dwight R. v. Christy B. (2013) 212 Cal.App.4th 697, 709-10.)

EVIDENTIARY

OBJECTIONS

The Court does not address

Defendants' objections as they are not pertinent to the Court's ruling on the motion.

DISCUSSION

I.

Protected Activity

To satisfy the first prong, a moving defendant must identify the activity each challenged claim rests on and demonstrate that that activity is protected by the anti-SLAPP statute. (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884.) A "claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1060.)

a. Online Reviews

The anti-SLAPP statute protects “any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest.” (Code Civ. Proc., § 425.16(e)(3).) A website is a public forum. (*Cross v. Facebook, Inc.* (2017) 14 Cal.App.5th 190, 199.) Courts broadly construe what is considered a matter of public interest. (*Brodeur v. Atlas Entertainment, Inc.* (2016) 248 Cal.App.4th 665, 674.) “[T]he issue need not be ‘significant’ to be protected by the anti-SLAPP statute—it is enough that it is one in which the public takes an interest.” (*Ibid.*)

At the same time, “‘not every Web site post involves a public issue.’” (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1366, quoting *D.C. v. R.R.* (2010) 182 Cal.App.4th 1190, 1226.) A post involves a public issue if it constitutes “consumer information that goes beyond a particular interaction between the parties and implicates matters of public concern that can affect many people.” (*Ibid.*) By contrast, publications which only cover “parochial issues concerning a private dispute about particular [medical] appointments” would not implicate the public interest. (*Id.* at p. 1367.)

Courts reject a “broad and amorphous” construction of public interest. (*Workman v. Colichman* (2019) 33 Cal.App.5th 1039, 1052.) “Defendants cannot merely offer a ‘synecdoche theory’ of public interest, defining their narrow dispute by its slight reference to the broader public issue.” (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 152.) “At a sufficiently high level of generalization, any conduct can appear rationally related to a broader issue of public importance.” (*Rand Resources, LLC v. City of Carson* (2019) 6 Cal.5th 610, 625.)

Melissa argues that the online reviews implicate the first prong because “consumer information about the qualifications and performance of professionals — above all, physicians performing elective surgery on the public — is a paradigmatic issue of public interest.” (*Melissa Mtn.* 7:18-20.) Roy similarly argues that “reviews of a physician’s services are statements on an issue of public interest.” (*Roy Mtn.* 6:1-2.)^[1]

However, the actual posts at issue do not constitute consumer information and do not discuss the qualifications and performance of medical professionals. Rather, the posts solely concern Melissa’s dissatisfaction with her

surgical experience. The fact that Melissa publicly aired her grievances does not transform the substance of the publications into matters of public importance. (See *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 900 ["a publication does not become connected with an issue in the public interest simply because it is widely disseminated, or because it can be used as an example of bad practices or of how to combat bad practices"].)

This conclusion is bolstered by Defendants' own argument that the posts contained Melissa's personal opinions. Melissa confirms that her review merely "reports the speaker's own state of mind" or her "aesthetic judgment" about her own face. (Melissa Mtn. 12:25-26; Melissa Reply 3:21-23.) Melissa additionally contends that the insult "SCAR-DESH" constitutes "classic rhetorical hyperbole and name-calling that no reasonable reader would understand as a verifiable assertion of fact," or "a pun." (Melissa Mtn. 13:1-3; Melissa Reply 3:22-23.) Roy argues the same. (Roy Mtn. 8:10-22.) This further confirms that Melissa's posts provided no information to aid consumers. Melissa's review about "ugly visible scarring" reflects her personal opinion about a particular experience. It does not constitute protected consumer information for purposes of the anti-SLAPP statute. Therefore, the posts did not implicate any matter in which the public has an interest.

This case is distinguishable from the cases cited by Defendants. In *Wong*, the posts "dealt with the more general issues of the use of nitrous oxide and silver amalgam, implied that those substances should not be used in treating children, and informed readers that other dentists do not use them." (*Wong*, *supra*, 189 Cal.App.4th at p. 1367.) "Thus, the review was not just a highly critical opinion of Wong's performance on particular occasions; it was also part of a public discussion and dissemination of information on issues of public interest." (*Ibid.*) By contrast, Melissa's online reviews were "just a highly critical opinion of [Dr. Ardesch's] performance on particular occasions." Melissa's posts did not discuss any issue of public importance in relation to cosmetic surgery.

In *Carver v. Bonds* (2005) 135 Cal.App.4th 328, 344, the challenged article "warned readers not to rely on doctors' ostensible experience treating professional athletes, and told what it described as 'a cautionary tale' of plaintiff exaggerating that experience to market his practice." The statements involved a matter of public concern

because they “served as a warning against plaintiff’s method of self-promotion, and were provided along with other information to assist patients in choosing doctors.” (Ibid.) By contrast, Melissa’s posts did not warn readers about Dr. Ardesch’s business practices and provided no information to assist patients in choosing doctors. Instead, the posts were purely personal grievances about Melissa’s own experience: “I am not happy with my results.” (Compl., Ex. E-I.)

In *Wilbanks*, “[t]he statements made by Wolk were not simply a report of one broker’s business practices, of interest only to that broker and to those who had been affected by those practices. Wolk’s statements were a warning not to use plaintiffs’ services. In the context of information ostensibly provided to aid consumers choosing among brokers, the statements, therefore, were directly connected to an issue of public concern.” (*Wilbanks*, supra, 121 Cal.App.4th at p. 900.) Again, Melissa’s posts solely concerned her own experience and provided no information to aid consumers choosing among cosmetic surgeons.

In *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146, the online posts implicated the plaintiff’s “character and business practices” and “were intended to serve as a warning to consumers about his trustworthiness.” Once again, Melissa’s posts do not serve a similar purpose. They contain no information about Dr. Ardesch’s character or business practices and cannot be interpreted as warning about his trustworthiness. Rather, according to Melissa herself, the posts contained her subjective opinion about her own appearance and a personal insult against Dr. Ardesch which no reasonable reader would take seriously. Melissa specifically denies that her review imputed Dr. Ardesch with any fraudulent or predatory intent, or accused him of being incompetent and reckless. (See Melissa Reply 2:22-26 [“the review says none of that”].) This further confirms that the review provided no consumer information about Dr. Ardesch’s character, practices, or trustworthiness.

Ultimately, Defendants’ attempt to elevate their personal grievance against Dr. Ardesch into a matter of public importance is not well-taken. The purported public interest—which shifts from “the qualifications and performance of professionals” (Melissa Mtn. 7:18-20) to “the quality and risks of elective facial cosmetic surgery” (Melissa Reply 5:18-21)—is precisely the type of “broad and amorphous” formulation that is routinely rejected by the courts. (See *Workman*, supra, 33 Cal.App.5th at

p. 1052.) Melissa's online posts, airing her personal grievances through opinions and personal insults, do not contribute to a matter of public importance under either formulation. "[W]hen the context and content of the specific, allegedly wrongful statements at issue here are considered, the degree of connection between those statements and that topic of public interest is insufficient to warrant protection under section 425.16." (See *Musero v. Creative Artists Agency, LLC* (2021) 72 Cal.App.5th 802, 821.)

Accordingly, Defendants have failed to satisfy the first prong in relation to the allegations targeting the online reviews.

b. Lawsuit

The anti-SLAPP statute protects (1) any written or oral statement or writing made before a judicial proceeding or (2) any written or oral statement or writing made in connection with an issue under consideration or review by a judicial body. (Code Civ. Proc., § 425.16(e).) Defendants' filing of the lawsuit, *Melissa Penuela v. Farhad Ardeshirpour, M.D., et al.* (25STCV29227), is a written statement made before or in connection with a judicial proceeding. So too is Defendants' response to Plaintiffs' retraction demand. The complaint partially targets this protected activity. (See Compl. ¶¶ 28-29.)

Where a cause of action arises from a mix of protected and unprotected activity, a court may strike those portions that pertain to protected activity. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-94.) Therefore, the burden shifts to Plaintiffs to show a probability of success on the claims to the extent they relate to Defendants' filing of the prior lawsuit and their pre-litigation communications.

II.

Probability of Success

Civil Code section 47(b) makes privileged a publication made "[i]n any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law." (Civ. Code, § 47(b).) The privilege "applies to any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the

litigation, even though the publication is made outside the courtroom and no function of the court or its officers is involved.” (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057.) The privilege covers prelitigation communications that are rationally related to litigation. (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1251.)

Here, Defendants’ filing of the prior lawsuit and their pre-litigation communications constitute privileged publications. Therefore, Plaintiffs have no probability of success to the extent the claims are based on that activity. Accordingly, paragraphs 28 and 29 are stricken from the complaint.

CONCLUSION

Defendants’ special motions to strike are GRANTED as to paragraphs 28 and 29 of the complaint and DENIED in all other respects.

[1] Roy also denies making the posts at all, but for purposes of this motion, the Court finds that the posts do not implicate matters of public interest regardless of who made them.